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In The
Supreme Court of the United States

October Term, 1994

JOHN J. HURLEY, Individually, and the
SOUTH BOSTON ALLIED VETERANS COUNCIL,

v.

Petitioners,

IRISH-AMERICAN GAY, LESBIAN AND BISEXUAL
GROUP OF BOSTON, By and through TIMOTHY
DALEY and CATHLEEN FINN, Individually and as
representatives of IRISH-AMERICAN GAY, LESBIAN
AND BISEXUAL GROUP OF BOSTON,

Respondent.

On Writ Of Certiorari To The
Supreme Judicial Court Of The
Commonwealth Of Massachusetts

BRIEF FOR RESPONDENT

MARY BONAUTO
GAY & LESBIAN ADVOCATES &
DEFENDERS
Post Office Box 218
Boston, Massachusetts
02112

LARRY W. YACKLE
Boston University School
of Law
Boston, Massachusetts
02215

CHARLES S. SIMS
PROSKAUER ROSE GOETZ &
MENDELSON
1585 Broadway
New York, New York 10036

JOHN WARD, Of Counsel
Counsel of Record
DAVID DUNCAN
ZALKIND, RODRIGUEZ, LUNT &
DUNCAN
65a Atlantic Avenue
Boston, Massachusetts
02110
(617) 742-6020

GRETCHEN VAN NESS
60 State Street
Boston, Massachusetts
02109

GARY BUSECK
McDONOUGH & HACKING
One Center Plaza
Boston, Massachusetts
02108

QUESTION PRESENTED

Does application of the state anti-discrimination law to the Council's administration of Boston's Evacuation Day/St. Patrick's Day Parade, on the record of this case, violate the Council's First Amendment rights, when the state courts found that the state's interests underlying the statute would be served less effectively absent such application, that any infringement on the Council's First Amendment interests is incidental, and that the Parade is, essentially, "an open recreational event"?

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OPINIONS BELOW

The opinion of the Supreme Judicial Court, *Irish-American Gay, Lesbian and Bisexual Group of Boston v. City of Boston*, 418 Mass. 238, 636 N.E.2d 1293 (1994), is included in Appendix C to the Petition for Certiorari. (C1.) The opinion of the Superior Court of the Commonwealth of Massachusetts, *Irish-American Gay, Lesbian and Bisexual Group of Boston, et al. v. City of Boston, et al.*, Civil Action No. 92-1518A (December 15, 1993), is included in Appendix B to the Petition for Certiorari. (B1.)

JURISDICTION

Respondent adopts Petitioner's jurisdictional statement.

CONSTITUTIONAL PROVISIONS INVOLVED

This case involves portions of the First and Fourteenth Amendments to the Constitution:

"Congress shall make no law . . . abridging freedom of speech . . . "

U.S. Constitution, Amendment I.

"Nor shall any state deprive any person of life, liberty, or property without due process of law . . . "

U.S. Constitution, Amendment XIV, § 1.

STATUTE INVOLVED

The statute involved is Massachusetts General Laws, chapter 272, sections 92A and 98. These sections are set out in the Appendix to this brief. (A1.)

STATEMENT OF THE CASE

This case turns on its facts. The relevant facts, which inform the holding on review in this Court – that the state anti-discrimination statute does apply, and constitutionally can apply, to the Parade – concern two important aspects of Massachusetts history and tradition.

One is Massachusetts' long history, dating from the civil war period, of very broad statutory anti-discrimination protection, extending to virtually every area of public life. In 1865, three years before the adoption of the Fourteenth Amendment, the Commonwealth enacted a statute providing that "no distinction, discrimination or restriction on account of color or race shall be lawful in any licensed inn, in any public place of amusement, public conveyance or public meeting in this commonwealth." 1865 Mass. Acts 277 (emphasis added); see *Bryant v. Rich's Grill*, 103 N.E. 925 (Mass. 1914). The Massachusetts Legislature has step by step expanded statutory protection beyond racial discrimination, as the Commonwealth's sense of the public interest has matured, and now proscribes discrimination on the basis of religion (1950 Mass. Acts 479, § 3), national origin (1963 Mass. Acts 613, § 5), sex (1971 Mass. Acts 418, § 2), deafness and blindness (1975 Mass. Acts 338, § 2), physical or mental disability (1979 Mass. Acts 595, § 2), and

sexual orientation (1989 Mass. Acts 516, § 15).¹ See Mass. Gen. L. ch. 272, §§ 92A, 98 (1994).²

It is not, and could not be, disputed that the Commonwealth's public accommodations statute, applied by the Massachusetts courts in this case, is a statute of general applicability. The statute was enacted under the Commonwealth's police power and is broadly targeted at discrimination. It is not specially aimed or targeted at speech, although on occasion it has been, as it was here, applied to conduct that is claimed to have expressive aspects.

The second facet of Massachusetts tradition involved in this case is the unique civic celebration that takes place in Boston each year on Evacuation Day, the day the British sailed away from Boston on March 17, 1776 after General Washington's first victory in the War of Independence. March 17, of course, also happens to be St. Patrick's Day. (Cert. Pet. App. at B8.)³ The rich history

¹ In addition to Massachusetts, five other states prohibit discrimination in public accommodations based on sexual orientation. See CONN. GEN. STAT. § 46a-81 (1992); MINN. STAT. ANN., §§ 363.02, 363.02(4), 363.03(3) (West Supp. 1993); N.J. STAT. ANN. § 10:5-4 (West 1993 and Supp.); VT. STAT. ANN. tit. 9, § 4502-03 (1993); WIS. STAT. § 101.22 (1991-1992). In addition, California's Unruh Act has been construed to forbid "unreasonable discrimination" in places of public accommodation. Cal. Civ. Code, § 51 (West 1994); see *Hubert v. Williams*, 133 Cal.App.3d Supp. 1, 5, 684 Cal. Rptr. 161 (1982).

² The statute is set out in full in Appendix A to this brief.

³ The opinions of the Massachusetts Superior Court and the Supreme Judicial Court are found in Appendices B and C, respectively of the Petition for Certiorari.

that surrounds this celebration is spread out in the record made in the trial court. That record vividly portrays a civic holiday centered on a municipal parade, which the Council itself refers to as "*the Parade*". (Pet'r Br. at at 2) (emphasis added).

The Parade was once formally under the City of Boston's management. (Cert. Pet. App. at B8-B9.) After World War II, Mayor James Michael Curley granted a group of returning veterans, Petitioners here (hereafter "the Council") "authority to organize and conduct the Parade." (*Id.* at B9.) Whatever its titular sponsorship, the Parade has without interruption been, in fact, an open recreational event for all the people of Boston who seek to celebrate both our freedom as Americans and the many strands of Irish heritage that underlie so much of Massachusetts' modern history. Parades are not all alike, and the Boston Evacuation Day/St. Patrick's Day parade cannot be understood without attention to its provenance and history. Whatever expressive elements it is claimed to have, which the state courts addressed in detail, it is beyond dispute that the Boston Parade differs in important ways from such social protests or political events as civil rights marches, labor demonstrations, or protest marches.

A. The Proceedings Below.

Litigation in this case began in March, 1992, when GLIB, a group of Irish-American gay men, lesbians, bisexuals and their supporters, filed a complaint in state court alleging, *inter alia*, that the City of Boston and the Council, acting under color of law, had deprived GLIB of its

First and Fourteenth Amendment rights by refusing to permit GLIB to register and march in the 1992 "City of Boston Evacuation Day Parade." (Record, Paper No. 1, Complaint, March 10, 1992.) The trial court issued a restraining order requiring GLIB's inclusion in the Evacuation Day Parade, limiting the number of marchers to 25 and imposing other conditions related to the safety of GLIB's members and also addressing the Council's fears that GLIB would be disruptive. (Record, Paper No. 3, March 11, 1992; Cert. Pet. App. at B26 n.28.) No appeal was taken, and GLIB participated in the 1992 event in an orderly fashion. (Cert. Pet. App. at B3, 26 & n.29.)

In February 1993, after GLIB's request for a registration form for the 1993 Parade was refused by the Council, GLIB filed an amended complaint (J.A. at A5 *et seq.*), repeating its 1992 allegations of deprivation of federal and state constitutional rights under color of law, and adding a count alleging that the Council, aided and abetted by the City of Boston, had unlawfully discriminated against GLIB and its members on the basis of sexual orientation in violation of Massachusetts General Laws, chapter 272, sections 92A and 98. After the hearing, on February 22, 1993, the Superior Court allowed GLIB's motion for a preliminary injunction, once again ordering GLIB's inclusion in the Parade, on essentially the same terms and conditions as in 1992. (J.A. at A2.)

In November 1993, the trial court conducted a four-day bench trial to determine whether GLIB was entitled to permanent, as opposed to preliminary, injunctive relief. In the course of trial, the trial judge heard 12 witnesses and received 113 exhibits. (Cert. Pet. App. at B2.) After hearing, the trial judge denied GLIB's claims

against the City (*Id.* at B22), but concluded that the Council had violated GLIB's right "to be free from sexual-orientation discrimination in a place of public accommodation, resort, or amusement" in violation of the Massachusetts public accommodations law. (Cert. Pet. App. at B28.) The court rejected the Council's claim that the First Amendment barred application of the state law to its conduct. (*Id.* at B25.) To remedy the violation of state law, the superior court decreed that "the defendant Veterans Council is permanently enjoined from preventing plaintiff GLIB from participating in the St. Patrick's Day/Evacuation Day Parade because of the group members' sexual orientation." (*Id.* at B28.) At GLIB's request, the court rescinded the special limiting conditions that had been imposed on GLIB by the 1992 and 1993 court orders, ordering, instead, that "the defendant Veterans Council shall allow GLIB to participate in the Parade in the same manner and under the same terms and conditions applicable to all other participants in the Parade." (*Id.* at B29.) The Supreme Judicial Court affirmed that judgment, one justice dissenting. (*Id.* at C15.)

B. The Judgment Below.

The trial court's judgment in GLIB's favor rested on three fact-based determinations: (1) that the Council had unlawfully discriminated against GLIB's members on the basis of their sexual orientation (Cert. Pet. App. at B4); (2) that the event described at trial, as the Council had administered it, was a place of public accommodation within the meaning of the public accommodations statute (Cert. Pet. App. at B9); and (3) that the Council was not entitled to an exemption from the anti-discrimination law

on First Amendment grounds. (Cert. Pet. App. at B4, B9, B25.) Each of these conclusions was supported by substantial evidence.⁴

1. The finding of sexual orientation discrimination

The Council, through John J. "Wacko" Hurley, its spokesperson, offered several ostensibly neutral explanations for excluding GLIB from the Parade: "safety reasons" (Cert. Pet. App. at B3); a decision by the Council that no groups with "sexual themes" would be permitted to march (*id.*);⁵ and an unsubstantiated belief that GLIB members were associated with radical gay groups (Cert. Pet. App. at B4-5 & n.5.) Hurley also denied that he or the Council were biased against "the gay/lesbian" (J.A. at A105), or had ever "knowingly" excluded any individual

⁴ The first two of the state courts' conclusions resolved questions of state law and are not reviewable in this Court. We nevertheless set out these conclusions, and their factual underpinnings, because the solidity of these findings is related to, and supports, the state courts' analysis and ultimate conclusion that the Veterans Council could not claim an exemption from the public accommodations statute based on the first amendment. Cf. *New York State Club Ass'n v. City of New York*, 487 U.S. 1, 13 (1988) (considering the extent to which a club was truly private, and extent to which its expressive purpose was central, in determining whether degree of incursion on first amendment rights of intimate and expressive association was constitutionally permissible).

⁵ This reason first surfaced in a letter written by the Council's lawyer to GLIB. (J.A. at 49.) It appears that in the mind of Mr. Hurley, the phrase "sexual themes" means self-identification as gay, lesbian or bisexual. (See Tr. at 328.)

from the Parade based on his or her sexual orientation. (J.A. at A102.) However, the trial judge found that Mr. Hurley "equivocated" on the stand and that the "reasons" he gave for the Council's exclusion of GLIB were "pretextual" excuses. (Cert. Pet. App. at B3-4.) In the end, the judge found as a matter of historical fact that "GLIB was excluded from the Parade on account of its members' sexual orientation, and I so find." (*Id.* at B4.)⁶ The Supreme Judicial Court affirmed the trial judge's finding, noting in particular the judge's painstaking examination of the trial evidence and the judge's reliance on Mr. Hurley's "inconsistent and changing explanations for excluding GLIB." (*Id.* at C6.)

⁶ The Council, (Pet'r Br. at 24,) ignores this explicit finding and substitutes instead the trial judge's summation of *the Council's* position that it was excluding GLIB on the basis of GLIB's values and message: "GLIB would be excluded because of its values and its message, *i.e.*, its members' sexual orientation." (Tr. of Closing Arg. at 43, 51-52 (Nov. 23, 1993); (Cert. Pet. App. at B4 n.5.)

In a similar vein, the Council states that "GLIB's Amended Complaint alleges that Defendants [the Veterans and the City] 'refused to allow them to march in the 1993 Parade because of the Plaintiffs' sexual orientation and *because of the content of their expression.*" (Pet'r Br. at 24) (emphasis in original). What the Council leaves out is that GLIB, in that specific claim, was alleging that the City and the Council, as a state actor, were violating GLIB's First and Fourteenth amendment rights. (J.A. at A12.) The claim against the Council alone, upon which GLIB prevailed, was a different one – that the Council discriminated against GLIB on the basis of its sexual orientation, in violation of the state anti-discrimination laws. (J.A. at A11-12.)

2. The determination that the parade is a place of public accommodation

The Council contended in the courts below that the anti-discrimination statute does not apply to its conduct of the Parade because the Parade is not a place of "public accommodation . . . or amusement" within the meaning of the statute. (Cert. Pet. App. at B6.) The trial judge rejected this on the basis of abundant evidence that the Council had shown no selectivity in the admission of groups to the Parade. (*Id.* at B6.) Not only did the Council allow a diverse array of commercial, political, theatrical, charitable, religious, athletic, and other groups to march, but it generally made no inquiry into "the specific views" of participating groups. (*Id.* at B7-8.) Moreover, some groups simply showed up and marched in the Parade without submitting an application, and others marched because they made a financial contribution in lieu of filling out an application. (*Id.* at B8.)⁷

⁷ In reaching his determination that the Council did not exercise genuine selectivity, the trial judge considered that the Veterans Council had, on occasion, excluded groups from the Parade, notably the Ku Klux Klan and an anti-busing group called ROAR. The judge noted that neither of these groups was protected under the public accommodations statute. (Cert. Pet. App. at B7.) The Supreme Judicial Court recognized that the Veterans Council had excluded a few other groups as well, a Right to Life group and a truck carrying anti-homosexual signs among them. The Supreme Judicial Court found "no legal relevance of this fact to the findings of the judge or to the conclusion we reach." (*Id.* at C8 n.10.)

The trial judge also took note of the specific character of the Boston Parade as a "public celebration of long-standing." (Cert. Pet. App. at B8.) In particular, the court noted that the Parade celebrates a public holiday, as well as St. Patrick's Day. The Parade was formerly administered by the City directly, in conjunction with a citizens association. It was only in 1947 that Mayor James Michael Curley conferred on the Council, composed of veterans returning victorious from World War II, the honor of organizing and conducting the Parade. Since then, the Council has been the exclusive holder of the permit to administer the Parade. (*Id.* at B8-9; Tr. at 302.)

The Governor of the Commonwealth issues a proclamation each year recognizing the historical significance of Evacuation Day, and public schools and buildings close for the day in Suffolk County. (Cert. Pet. App. at B8, n.10.)

The Parade draws as many as 20,000 participants and up to 1,000,000 spectators (*id.* at B9), and it is "the largest New England event for Irish-Americans, their friends, and well-wishers." (*Id.*)

Based on these factual findings, and the plain meaning of the public accommodations statute,⁸ as construed in prior instances, the Supreme Judicial Court affirmed the trial court's ruling that the Parade falls within the scope of the public accommodations law. (*Id.* at C11-12.)

⁸ A "place of public accommodation" includes, *inter alia*, "a boardwalk or other public highway" and a "place of public amusement, recreation, sport, exercise or entertainment . . ." Mass. Gen. L. ch. 272, § 92A(6), (8) (1994).

At the same time, the Supreme Judicial Court was careful to note that it was by no means holding that every parade is a place of public accommodation. "Rather, we base our conclusions on the unique nature of the facts found as to the parade in controversy." (*Id.* at C13-14 n.18.)

3. The determination that the parade is not entitled to a first amendment exemption

The Council contended at trial and on appeal in state court that the Parade "is a form of speech protected by the First Amendment via the Fourteenth Amendment, and that [the Council's] speech will be effectively diluted or distorted if they are required to include GLIB in the Parade." (Cert. Pet. App. at B23.)

Invoking this Court's precedents,⁹ the trial court considered the Council's First Amendment claim, but ultimately rejected it. (*Id.* at B23-24.) Based on the factual record before him, the trial judge concluded that "it is impossible to discern any specific expressive purpose entitling the Parade to protection under the First Amendment." (*Id.* at B25 (quoting *New York State Club Ass'n*, 487 U.S. at 13).)

Essentially, the judge decided that the same facts which deflated the Council's claim that the Parade was not a place of public accommodation also put to rest the Council's First Amendment claim. He found that the event consisted of

⁹ See *Dallas v. Stanglin*, 490 U.S. 19, 25 (1989); *New York State Club Ass'n, Inc. v. City of New York*, 487 U.S. 1, 13 (1988); *Roberts v. United States Jaycees*, 468 U.S. 609, 617 (1984).

"diverse groups espousing myriad themes and values," and that the Council made no significant attempt to limit participation or circumscribe the messages of participants. To the contrary, the record established that the Council "always opted for heterogeneousness." (Cert. Pet. App. at B24-25.) On these facts, the court held that the inclusion of GLIB would not undermine any specific purpose around which the Parade was organized. (*Id.* at B25.)

Moreover, the judge held, even if there was some slight infringement on the Council's right of expressive association, the incidental infringement imposed by the public accommodations statute was permitted under this Court's cases. *See, e.g., Board of Directors of Rotary Int'l v. Rotary Club*, 481 U.S. 537, 549 (1987); *Roberts*, 468 U.S. at 623.

Finally, the judge noted that "[t]his is not to say that the Parade can never become a protected First Amendment activity. It simply has not been one in the past and is not one now." (Cert. Pet. App. at B25 n.27.)

After its own review of the record and the trial court's factual findings, the Supreme Judicial Court affirmed the trial judge's determination that it was impossible to discern any specific expressive purpose that would exempt the Council from compliance with the public accommodations law. (*Id.* at C13-14.) The Supreme Judicial Court recognized that the trial court had reached its conclusions in light of extensive evidence and the trial judge's assessment of witnesses, particularly Mr. Hurley. (Cert. Pet. App. at C14.) Giving due weight to the trial court's work, and its own independent review of the

record, the Supreme Judicial Court affirmed the court below. (*Id.*)¹⁰

SUMMARY OF ARGUMENT

The Council's reaction to GLIB's exercise of its right under the public accommodations statute to participate in the annual Evacuation Day/St. Patrick's Day Parade has been quite predictable to anyone familiar with the enforcement of civil rights laws. First, the Council, which is usually quite laissez faire in allowing groups to march in the Parade, objected to GLIB for "safety reasons and lack of information about the group." When those "reasons" proved unconvincing, the Council alleged that it had established a new "category" of forbidden entrants, those with "sexual themes." Not surprisingly, GLIB, which like many other groups marched with a banner stating its name, was the only group that fell under the ban. Only when the "sexual themes" rationalization collapsed as well, did the Council develop the First Amendment argument pressed here.

There is good reason why this argument has failed at least five times in state court. None of it is persuasive or bears any serious relationship to the facts of this case.

In this brief, we will examine each of the constituent parts of the Council's argument and show that each of

¹⁰ The Supreme Judicial Court also considered and rejected on the merits the Council's argument, raised for the first time on appeal, that the public accommodations statute is vague and overbroad. (Cert. Pet. App. at C15-16.)

them is without support either in the record that the Council made below or in this Court's settled case law.

First, this case involves the enforcement of a generally applicable anti-discrimination statute, not a statute targeted at speech. For this reason, the asserted impact on the Council's First Amendment interests is subject to the "intermediate level of scrutiny" afforded under such cases as *Turner Broadcasting System v. FCC*, ___ U.S. ___, ___, 114 S.Ct. 2445, 2469 (1994) and *United States v. O'Brien*, 391 U.S. 367 (1968).

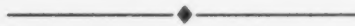
Second, the Parade, probably unlike most parades, is a civic celebration that the City sponsored for many years and that the Council has administered for nearly five decades as an open recreational event, far more like Mardi Gras or a July Fourth celebration on a mall than like a political rally. As such, again probably unlike most parades, the event falls within the Commonwealth's public accommodations statute, which, even before the adoption of the Fourteenth Amendment, had broadly banned discrimination in public places, including "public meetings."

Third, while persons or groups in the Parade may indeed express a variety of messages, the Council itself has not used the Parade as the kind of expressive vehicle that would entitle it to an exemption from a generally applicable statute under this Court's case law. That statute serves a substantial state interest and targets conduct, not speech. Neither the statute nor the order enforcing it infringes on expressive activity except incidentally, and the statute and order are no broader than necessary to

achieve the Commonwealth's legitimate interest in ending unlawful discrimination.

Finally, the Council has not been "compelled" to say anything. It has been required only to treat GLIB like any other group, giving it the access to a public event that the statute requires. The Council's argument that GLIB's marching under an identifying banner forces the Council to utter a message it dislikes is specious. Sexual orientation, like religion or national origin, and sometimes race and disability, is not self-evident. Thus, to propose that mere identification on the basis of sexual orientation offends anyone's First Amendment rights in the context of a public event is to urge a proposition that is simply not defensible. If the Council were to say that it is not opposed to Irish Jews marching in the Parade as long as they do not identify themselves as a group, no one would take it seriously. The Council's argument that it does not exclude lesbians, gay men, and bisexuals, but only those who are identified as such deserves the same summary dismissal.

Some parades, like other forms of expressive conduct, are so tied to a specific expressive purpose, that enforcement of the public accommodations laws might truly infringe on expressive conduct in a way that the Constitution does not tolerate. The Parade the Council has created is simply not one of those parades.



ARGUMENT

I. THE COUNCIL'S CLAIM THAT IT IS EXEMPT FROM A GENERALLY APPLICABLE STATUTE AIMED AT CONDUCT FAILS: ENFORCEMENT OF THE STATUTE IN THIS CASE DOES NOT VIOLATE THE FIRST AMENDMENT, EVEN THOUGH IT MAY HAVE AN INCIDENTAL EFFECT ON THE COUNCIL'S CLAIMED FIRST AMENDMENT INTERESTS.

This case arises from the enforcement of a generally applicable statute that is now, and has been for more than a hundred and thirty years, targeted at conduct, not speech. The highest court of a state has held this statute applicable to the conduct before it. Accordingly, this Court's cases make clear that the power of the state to enforce the will of the legislature is not to be tested by the "strict scrutiny" standard that the Council and its amici invoke. Instead, the appropriate standard is an "intermediate level of scrutiny applicable to content-neutral restrictions that impose an incidental burden on speech." *Turner Broadcasting Sys.*, ___ U.S. ___, ___, 114 S.Ct. at 2468 (citing *Ward v. Rock Against Racism*, 491 U.S. 781 (1989) and *United States v. O'Brien*, 391 U.S. 367 (1968)). Even if the Court accepts for purposes of analysis the Council's contention that its conduct has expressive elements, the record clearly establishes that the impact of the enforcement of state law on any such expressive conduct is well within the limits that the Constitution tolerates.

The Council insists that because it is administering a *parade*, the impact of the statute on its activity should *ipso facto* be subject to the highest level of scrutiny under the First Amendment. (Pet'r Br. at 11.) But that is not the

law.¹¹ Notwithstanding the precious nature of First Amendment rights, those who claim the mantle of the First Amendment have no "special immunity from the application of general laws," no "special privilege to invade the rights and liberties of others," *Cohen v. Cowles Media Co.*, 501 U.S. 663, 670 (1991) (citation omitted), and no "protection from governmental regulations of general applicability simply by virtue of their First Amendment protected activities." *Arcara v. Cloud Books, Inc.*, 478 U.S. 697, 705 (1986).

This principle is not altered by the talismanic invocation of the label "parade." First Amendment jurisprudence is not so mechanistic that the quantum of protected expression depends on such labels.¹² It has instead developed serviceable principles, applied case by case, by which to assess laws aimed at conduct that may incidentally affect speech.

¹¹ The fact that the Council can plausibly assert First Amendment interests in the conduct being regulated is not the only factor to be considered in determining the appropriate standard of review. Equally important to consider is whether the statute in question targets speech or, on the other hand, is a generally applicable statute aimed at conduct that incidentally affects speech. Cf. *Ward*, 491 U.S. at 791 ("The principal inquiry . . . is whether the government has adopted a regulation of speech because of disagreement with the message it conveys").

¹² By the same token, it would be wrong to sidestep the First Amendment in this case, by simply calling the Parade a "public accommodation." As the state courts understood, the state law issue of whether this particular parade is a place of public accommodation is a distinct issue, anterior, although related, to the separate federal question concerning the constitutionality of applying the statute on the facts found here.

These principles apply in this case. Based on the findings and record below, there can be no question but that the event in question involves a substantial amount of conduct mixed with whatever expressive elements there may be. The Council did not make a speech or write a pamphlet. Cf. *Texas v. Johnson*, 491 U.S. 397, 406 ("The government generally has a freer hand in restricting expressive conduct than it has in restricting the written or spoken word."). The Council has not, at least until this year,¹³ conducted a protest march.¹⁴ On the contrary, the Council has administered what the state courts found was, in fact, an "open recreational event," with arguably expressive features. Because of the generality of the law at issue and the admixture of conduct, the First Amendment "weight" of whatever expressive elements may be

¹³ See *South Boston Allied War Veterans Council v. City of Boston*, No. 94-11402-MLW, 1995 WL 40641 (D.Mass. Jan. 17, 1995), appeal docketed, No. 95-1202 (1st Cir.).

¹⁴ Both the Council, (Pet'r Br. at 11,) and amicus American Civil Liberties Union, (Br. of Amicus A.C.L.U. at 4, 11, 17) cite cases, e.g., *Gregory v. City of Chicago*, 394 U.S. 111 (1969), *Forsyth County v. Nationalist Movement*, ___ U.S. ___, 112 S.Ct. 2395 (1992), that are said to create a special First Amendment niche for parades. In the first place, these cases concerned government attempts to stop a protest march from happening, either by arresting the marchers, e.g., *Gregory*, 394 U.S. at 112, or by imposing permit conditions so onerous as to amount to a prior restraint, *Forsyth*, ___ U.S. at ___, 112 S.Ct. at 2401. These cases recognized that the protest marches at bench were protected under the First Amendment. However, they also recognized that the marches were protected *conduct*, see *Gregory*, 394 U.S. at 112, and they said nothing that supports the conflation of "pure speech" and "speech plus conduct" that the Council urges the Court to endorse in this case.

presumed to inhere in such an event is thus to be judged by the "intermediate" standard that this Court has long employed in cases involving "expressive conduct." *Clark v. Community for Creative Non-Violence*, 468 U.S. 288, 293 (1984); see, e.g., *United States v. O'Brien*, 391 U.S. 367, 376 (1988) ("[W]hen 'speech' and 'nonspeech' elements are combined in the same course of conduct, a sufficiently important governmental interest in regulating the non-speech element can justify incidental limitations on First Amendment freedoms"); *Barnes v. Glen Theatre, Inc.*, 501 U.S. 560, 567 (1991); *Ward*, 491 U.S. at 791.¹⁵

Under that familiar standard, the statute may be applied, and no exemption is warranted, if the regulation furthers an important governmental interest unrelated to the suppression of free expression and the restriction on alleged First Amendment freedoms is no greater than is necessary to further that interest. *Turner*, ___ U.S. at ___ 114 S.Ct. at 2469; *Ward*, 491 U.S. at 799; see *Roberts*, 468 U.S. at 628 (holding that an anti-discrimination statute can be enforced if the effect on speech is "no greater than is necessary to accomplish the State's legitimate purposes"). The requirement that the restriction on First Amendment interests be no greater than necessary is

¹⁵ Cf. *Cohen*, 501 U.S. at 669 (explaining that generally applicable laws do not offend the First Amendment simply because they have incidental effects on news gathering); *Employment Div., Dep't of Human Resources v. Smith*, 494 U.S. 872, 885 (1990) (holding that government's "ability to enforce generally applicable prohibitions of socially harmful conduct" is not defeated because it impedes some religious practices); *Church of the Lukumi Babalu Aye v. City of Hialeah*, ___ U.S. ___ 113 S.Ct. 2217, 2226 (1993).

satisfied so long as the statute promotes a substantial governmental interest that would be achieved less effectively in the absence of the regulation. *Turner*, ___ U.S. at ___, 114 S.Ct. at 2466 (citing *Ward*, 491 U.S. 781, *O'Brien*, 391 U.S. 367).

This familiar "intermediate" standard is particularly appropriate in the present case because the Council has for many years been the gatekeeper for "the" annual Evacuation Day/St. Patrick's Day Parade in Boston. (Pet'r Br. at 3.) As the record below makes clear, this "traditional" street celebration is scarcely a "private" Parade, as the Council would have it. (Pet'r Br. at 13.) On the contrary, the Parade, and indeed whatever expressive elements the Parade embodies, do not belong to the Council. (See Pet'r Br. at 3.) The Parade belongs, and has always belonged, to all the citizens of Boston. It is a broad and encompassing civic event, like Mardi Gras¹⁶ or July 4 celebrations, whose administration the City has consistently delegated to the Council for nearly a half century. (Cert. Pet. App. at B6-9.) This Court has recognized that even private entities and groups (which themselves enjoy First Amendment protection) may be subjected to governmental regulation that would otherwise be invalid, if they control a "critical pathway of communication" and are

¹⁶ The City of New Orleans has adopted an ordinance requiring the krewes that conduct the Mardi Gras parades, as a condition of obtaining a parade permit, to attest that the krewe does not unlawfully discriminate in membership on the basis of race, color, creed, religion, national origin, sexual orientation, ancestry, age, sex, physical condition or disability. New Orleans, La., Code, § 40C-109. There has been no successful First Amendment challenge to this provision.

thus in a position to "silence the voices of competing speakers." *Turner*, ___ U.S. at ___, S.Ct. at 2466.

In this connection, the Council's role as custodian of "the largest New England event for Irish-Americans, their friends and well-wishers" (Cert. Pet. App. at B9), is doubly significant. To the extent that the Council is, as the record discloses, a conduit through which groups enter the Parade rather than itself a speaker, its own First Amendment interests become less significant. On the other hand, the Council's power to exclude unwanted participants from the Parade, even if rarely used, increases the Commonwealth's interest in ensuring that the Council observes the access requirements of the public accommodations statute. See *Turner*, ___ U.S. at ___, 114 S. Ct. at 2468.

In the sections which follow, we will demonstrate that, under the appropriate standard of "intermediate scrutiny", the application of the statute in this case does not impermissibly intrude on any First Amendment interests of the Council.¹⁷

¹⁷ One amicus, the American Civil Liberties Union, argues that the state courts did not fully explore the way in which the City's longstanding pattern of delegating responsibility for "the" Evacuation Day/St. Patrick's Day Parade to the Council may have established a set of connecting arrangements under which the Council, acting as a surrogate for public authority, is obligated to exercise its delegated authority consistent with the Fourteenth Amendment. (Br. of Amicus A.C.L.U. at 19-22). If this case were to be remanded, the ACLU suggests that the Supreme Judicial Court should revisit that "state action" question. There is indeed abundant evidence in the record, cited by the trial judge in his opinion (Cert. Pet. App. at B14-22), that the

II. THE STATE ANTI-DISCRIMINATION LAW SERVES SUBSTANTIAL GOVERNMENTAL INTERESTS UNRELATED TO SPEECH.

The Council apparently concedes, as it must, that the Commonwealth has a valid, compelling interest in prohibiting unlawful discrimination in places of public accommodation. (See Pet'r Br. at 23, 33.) Anti-discrimination statutes "'plainly serv[e] compelling state interests of the highest order.'" *Rotary Int'l v. Rotary Club of Duarte*, 481 U.S. 609, 629 (1987) (quoting *Roberts*, 468 U.S. at 624).

Moreover, the anti-discrimination statute is plainly a law of general application whose purposes are entirely unrelated to the suppression of free expression. The fundamental objectives of such statutes are to deter the deprivation of personal dignity inherent in the denial of equal access to places of "public accomodation and amusement" and to remove barriers to economic advancement and full political and social integration. *Roberts*, 468 U.S. at 625-26. The evils addressed by anti-discrimination statutes produce harm that is "wholly apart from the point of view such conduct may transmit." *Id.* at 628.

Council's conduct of the Parade in conjunction with City authorities constitutes state action, and that ground for affirming the judgment of the Supreme Judicial Court is open to this Court, even though it was raised only in a reply brief in that court, and rejected. Cf. *Teague v. Lane*, 489 U.S. 288 (1989). The City's long-standing delegation of administration of an important civic event to a nominally private party would support such a conclusion. See *Terry v. Adams*, 345 U.S. 461 (1953); *Smith v. Allwright*, 321 U.S. 649 (1944).

In the present case, neither the Massachusetts public accommodations statute nor the injunction enforcing it is addressed to expression. The statute whose application is at issue makes no "distinctions based on viewpoint." *Rotary Int'l*, 481 U.S. at 549. Accordingly, the only question left to be decided is whether the application of the statute in this instance burdens more speech than is necessary to advance the important governmental interests underlying the statute. *Turner*, ___ U.S. at ___, 114 S.Ct. at 2469; *Roberts*, 468 U.S. at 628-29. To that issue we now turn.

III. THE STATUTE RESTRICTS EXPRESSIVE INTERESTS NO MORE THAN IS NECESSARY TO FURTHER THE COMMONWEALTH'S SUBSTANTIAL INTERESTS IN ELIMINATING DISCRIMINATION.

The application of the state anti-discrimination law to the Council's conduct in this instance "responds precisely to the substantive problems which legitimately concern the [Commonwealth]." *City Council of Los Angeles v. Taxpayers for Vincent*, 466 U.S. 789, 810 (1984). Applying the statute eliminates an instance of the discrimination that the legislature aimed at ending. Enforcement in this case will also ensure that the policies behind the public accommodations law are not defeated by unsupported generalizations about the degree of intrusion on expressive association wrought by the statute in this instance. See *Roberts*, 468 U.S. at 627-28; cf. *Clark*, 468 U.S. at 296-97 (holding that a regulation need not be judged solely by reference to its impact on the expressive elements of conduct *sub judice*).

The close fit between the Commonwealth's substantial interest in banning discriminatory conduct and the remedial measure taken here would seem to warrant affirmance without more. *Barnes*, 501 U.S. at 567; *Ward*, 491 U.S. at 791. However, we address the alleged harm to the Council's First Amendment interests in detail, to show that the claims of significant harm are insubstantial.

A. Neither the Anti-Discrimination Law Itself Nor the Order Enforcing it in this Case "Compels" Speech on the Part of the Council.

The Council contends that the application of the Massachusetts public accommodations statute to the administration of the Parade requires it to mouth a message that it finds offensive. (Pet'r Br. at 28.) This contention is simply old wine in new bottles. Presumably, the manager of Ollie's Barbeque had a point of view about serving African-Americans. However, he could not have prevailed in *Katzbach v. McClung*, 379 U.S. 274 (1964), by asserting that compliance with the Civil Rights Act "compelled" him to utter a message he found uncongenial. The same would undoubtedly be true if an employer refused to hire Jews. Upon analysis, it becomes clear that, on the facts of *this* case, the Council's argument fares no better, despite the talismanic invocation of the "parade" label and the substitution of sexual orientation for race or religion as the proscribed basis of discrimination.

In the end, a settled principle controls here: "[A]cts are not shielded from regulation merely because they express a discriminatory idea or philosophy." *R.A.V. v. City of St. Paul*, ___ U.S. ___, 112 S.Ct. 2538, 2546-47 (1992). The "compelled speech" and "forced access" cases deal with factual situations entirely different from this case. See also *Roberts*, 468 U.S. at 622-23; *Turner*, ___ U.S. at ___, 114 S.Ct. at 2469; *PruneYard Shopping Center v. Robins*, 447 U.S. 74, 88 (1980); but cf. *South Boston Allied War Veterans*, 1995 WL 40641 at *5 (concluding that a different parade, organized around what the court found to be a non-pretextual "protest theme," would be entitled to an exemption from the public accommodations statute).

It is important to disentangle the actual issues involved here from problems this case does *not* present. First, the Commonwealth has not compelled the Council "to 'say' anything; and it has not forced [the Council] to communicate ideas with nonverbal actions reasonably likened to 'speech,' such as wearing a lapel button promoting a political candidate or waving a flag as a symbolic gesture." *Woley v. Maynard*, 430 U.S. 705, 720 (1977) (Rehnquist, J., dissenting); accord *PruneYard*, 447 U.S. at 88 (finding no compulsion of property owners to "affirm their belief in any governmentally prescribed position or view"); *Turner*, ___ U.S. at ___, 114 S.Ct. at 2454 (concluding that "must-carry" regulations do not compel broadcasters to "affirm points of view with which they disagree").¹⁸

¹⁸ To put it another way, in view of the facts and circumstances of this Parade, the Council is plainly not an "association engaged exclusively in protected expression" of the sort to which Justice O'Connor referred in her concurring opinion in *Roberts*, 468 U.S. at 633 (O'Connor, J., concurring).

Second, and equally important, the Commonwealth has not prescribed or dictated any specific message that the Council is required to display in the Parade. See *Roberts*, 468 U.S. at 623-624 (recognizing that state anti-discrimination laws are not aimed at the suppression of speech and do not discriminate on the basis of viewpoint). Accordingly, there is no danger in this case of "governmental discrimination for or against a particular message." *PruneYard*, 447 U.S. at 87.

Finally, this case cannot be analogized to this Court's "forced access" (as opposed to "compelled speech") cases. (Pet'r Br. at 22). See *Pacific Gas & Elec. Co.*, 475 U.S. 1, 18 (1986); *Miami Herald Publishing Co. v. Tornillo*, 418 U.S. 241 (1974). As the Court explained in *PruneYard*, *Tornillo* involved a "right of access" that functioned as a content-based penalty upon a newspaper's speech and that created a danger of suppressing public debate "by deterring editors from publishing controversial political statements that might trigger the application of the statute." *Turner*, ___ U.S. at ___, 114 S.Ct. at 2464-65; *PruneYard*, 447 U.S. at 88. Likewise, the compelled "access" in *Pacific Gas & Electric* was not content-neutral but rather was limited to persons who disagreed with the utility's views. See *Pacific Gas & Elec. Co.*, 475 U.S. at 13. That amounted to conferring benefits on speakers based on viewpoint. *Turner*, ___ U.S. at ___, 114 S.Ct. at 2465.

The facts in this case contrast sharply with those in *Wooley*, *Tornillo*, and *Pacific Gas & Electric*. In this case, the Council objects to the enforcement of a content-neutral ban on unlawful discrimination in a forum that the Council itself has opened to virtually all comers. Thus, there is no danger that the Council's highly publicized aversion

to GLIB will be obscured or that GLIB's presence will be mistaken for an endorsement by the Council of openly expressed same-sex sexual orientation. See *Turner*, ___ U.S. at ___, 114 S.Ct. at 2465-66; *PruneYard*, 447 U.S. at 87.

The Council's objection to the Massachusetts civil rights law and its application in this instance does not establish that the Council is constitutionally entitled to conduct this particular event in defiance of that law. If such a point of view *were* sufficient in itself for an exemption, then every operator of a place of public accommodation who wishes to discriminate on a proscribed basis would be able to do so and to cite the First Amendment in justification. That is not the law.

"[I]nvidious private discrimination may be characterized as a form of exercising freedom of association protected by the First Amendment, but it has never been accorded affirmative constitutional protections.'" *Hishon v. King & Spalding*, 467 U.S. 69, 78 (1984) (quoting *Norwood v. Harrison*, 413 U.S. 455, 470 (1973); see *Wisconsin v. Mitchell*, ___ U.S. ___, 113 S. Ct. 2194, 2200-2201 (1993) (holding that a penalty-enhancement statute for bias-motivated offenses does not violate the First Amendment); *R.A.V. v. City of St. Paul*, ___ U.S. at ___, 112 S. Ct. at 2546-47. Citizens who disapprove of laws are entitled to express their dissenting views, explicitly in speeches and articles or symbolically in demonstrations, parades, and other activities. But nobody has a first amendment right simply to refuse to comply with laws he or she finds objectionable.

The Council nevertheless seeks to avoid the state courts' determination that exclusion of GLIB constituted

discrimination. It makes a spurious distinction between (1) having to allow GLIB members to march and (2) having to allow GLIB marchers to march while self-identifying as lesbians, gay men or bisexuals by means of a banner. The Council argues that the order of the courts below has done more than prohibit discrimination; the order has gone a step further to "mandate dissemination of an ideological message supported by those it seeks to protect." (Pet'r Br. at 23.)

First, the Council's argument misapprehends the state court ruling. GLIB obtained a judgment and order preventing the Council from excluding GLIB from the Parade "because of the group members' sexual orientation." (Cert. Pet. App. at B28.) The order requires that GLIB be allowed to participate "in the same manner and under the same terms and conditions applicable to all other participants in the Parade." (*Id.* at B29.) The order therefore requires nothing more than the cessation of discrimination, to which the Council seemingly does not object,¹⁹ and a consequent obligation of equal treatment

¹⁹ The Council's assertion that it does not "knowingly" exclude individual gay and lesbian participants merely acknowledges that the Council has no practical means of singling such individuals out from the throng. If, however, individuals march together behind the GLIB banner, the Council *can* distinguish them and eliminate them *en masse*. The distinction the Council hopes to draw, then, is a distinction of convenience. When individuals participate anonymously, the Council does not undertake to identify and banish them on the basis of their sexual orientation. When, however, individuals identify themselves, the Council *can* single them out for discrimination. That is precisely what the Council proposes to do, in violation of the Massachusetts anti-discrimination law.

with respect to the terms and conditions of participation. Such an order hardly constitutes "forced speech" or content-based "forced access." If GLIB is permitted to march behind an identifying banner, it is only because the Council permits other groups to identify themselves by carrying banners.

Second, the Council simply ignores the reality that, like characteristics such as religion or national origin, sexual orientation is a characteristic that is not generally self-evident to observers without some kind of "sign." A statute can effectively discourage discrimination on the basis of religion only if individuals identify themselves as members of religious groups, for example, by wearing a Star of David, a cross, or a head covering. The protection of the anti-discrimination laws extends to self-identifying Jews, or Catholics, or Sikhs, and not just to those whose religion is not visually apparent. Indeed, it is precisely the self-identifying Jew or Catholic or Sikh who is in need of, and entitled to, the protection of anti-discrimination statutes.

The same is true, of course, for gay men, lesbians and bisexuals. To contend in this case, then, that when gay men, lesbians, and bisexuals identify themselves as such, they concomitantly advance a message that the Council is entitled to reject, is to urge that public accommodations statutes barring discrimination against members of the class protected by such laws cannot constitutionally be enforced.²⁰

²⁰ Nor can the Council persuasively assert a right not to "speak when it would prefer to remain silent." (Pet'r Br. at 25.)

Moreover, the Council's position bears all the marks of *post hoc* rationalization designed as a stratagem for evading the public accommodations law. The Council contends that the mere presence of an identified GLIB contingent would convey a "sexual theme" that is inconsistent with the "family values" the Council itself wishes to foster.²¹ Conveniently, this purported criterion finds virtually *all* messages and identifications acceptable, except for GLIB's identifying banner, which is unerringly singled out for exclusion. Small wonder the state courts below flatly refused to believe that the Council actually uses any such criterion to choose Parade participants.

An employer cannot resist application of Title VII on the ground that compelled employment of an African-American would require the employer to "break her silence" on issues of race. The very purpose of public accommodations statutes is to protect the right conferred by state law to participate in public life without having to hide identity or remain silent about it. The state's interest in preventing discrimination in public accommodations and amusements could not be effectively furthered were such a defense recognized.

²¹ This proposition is scarcely self-evident. On the contrary, it is clearly wrong. GLIB marchers are, to be sure, citizens who affirm their sexual orientation. Yet the message they wish to convey by participating in the Parade is simply the existence of gay men, lesbians, and bisexuals as part of the Irish-American community. If a contingent from the NAACP were to march in the parade, with or without an identifying banner, it is inconceivable that the Council, or anyone else, would conclude that a "racial" theme would somehow be pressed. The Council's inability to see anything but a "sexual" theme in GLIB's message is only further evidence of the Council's discriminatory intent to bar GLIB's members from this event because of their sexual orientation.

B. Any Incidental Impact on the Council's Expressive Interests is Justified by the Advancement of the Commonwealth's Interest in Eliminating Unlawful Discrimination.

The hallmark of the expressive association doctrine addressed in cases such as *Roberts*, 468 U.S. 609, *Rotary International*, 481 U.S. 537, and *N.A.A.C.P. v. Alabama*, 357 U.S. 449 (1958) is *membership*, and efforts by government to prevent the joining together of individuals to advance expressive interests. Those cases are inapposite here, as the Council appears to concede. (Pet'r Br. at 32.) The state courts did not require the admission of GLIB to membership in the Council or preclude the Council's members from expressing their views on any subject whatever, in any forum whatever, including the Parade. The state courts did not hold that the Council itself is a place of public accommodation to which the Massachusetts statute applies. They held that the event that the City conducted for years and that the Council has more recently conducted is such a place.

The Council nonetheless invokes the right of association for expressive purposes here, as an alternative means of asserting its claim that the content of its message is somehow impaired or diluted by application of the anti-discrimination statute on the facts of this case. (Pet'r Br. at 32-33.)

The Council's claim, thus articulated, is no more persuasive than its claim that it has been compelled to speak. The findings below, solidly based on the evidence, make plain that application of the civil rights law to the

administration of the Parade would not burden *the Council's* ability to express some message symbolically at all, and surely no more than is reasonably necessary to vindicate the state's anti-discrimination policies.

No one has suggested, of course, that the Parade itself is devoid of expressive value. Far from it. Most or all the actual participants have their own messages. Political candidates doubtless consider the Parade to be a campaign appearance, and corporations presumably regard their participation as a form of commercial advertising. In this self-evident sense, the Parade fairly bristles with communicative content. Indeed, GLIB, too, would have contributed a message if it had been allowed to participate. It does not follow, however, that the Council's involvement shares much, or any, of the same expressive character.

Because the Council functions chiefly as the administrator²² of the event, its own message, to the extent that there is one, must be inferred from its conduct in admitting groups to the Parade. Cf. *Turner*, ___ U.S. at ___, 114 S.Ct. at 2465 (discussing cable's "long history of serving as a conduit"). The Council argues, in effect, that it stands in the place of an orchestra conductor, who places his or her mark on a performance by selecting and organizing constituent parts and blending a variety of elements into

²² Various Council members are Parade officials and march as such, and those members of the Council who are part of the Council's staff march as a group. (J.A. at 44.) There is no suggestion that such persons' participation expresses anything other than their presence, any more than GLIB's participation carries the same message.

the whole. The Council insists that the First Amendment establishes its right to conduct cacaphony rather than symphony, if it chooses to do so.

On the record developed at trial, however, the state courts concluded that the Council's selections contain no substantial indirect expression apart from the Council's objection to the application of the civil rights laws to this event. In effect, the state courts found that the Council has more the role of a restaurant maitre d', who reserves a table for anyone who calls, seats arrivals in proper turn, and bears little or no relation to the disparate dinner conversations that ensue.²³

There was, to be sure, testimony that the Council selected participants as an implicit, symbolic means of endorsing "traditional family values." But on the record as a whole, the state courts properly concluded that that evidence, to the extent it was credible, simply failed to establish any expression bound up in the Council's administration of the parade that would be genuinely and seriously affected by the application of the civil rights laws.²⁴ Certainly, there was no credible evidence that the

²³ We take no issue with the unremarkable proposition that the First Amendment protects not only a speaker's single distinct message, but also eclectic expression. (Pet'r Br. at 16.) But the judgment below rests on a finding that there was simply very little, if any, expression in the Council's administration of the Parade.

²⁴ The Council contends that it has excluded the Ku Klux Klan and ROAR, an anti-busing group, and that it has sometimes allowed other groups to participate only on condition that they "circumscribe their messages." (Pet'r Br. at 15.) The occasional exercise of selective judgment does not,

Council is "organized for specific expressive purposes" and will be unable to advocate its "viewpoints" nearly as effectively unless it is permitted to administer this event without complying with the state anti-discrimination law. *New York State Club Ass'n*, 487 U.S. at 13.²⁵

Fact-sensitive cases like this one come in all sizes and shapes. Cases at the extremes are relatively easy. If, for example, the proprietor of the Cheers Bar were to propose that he or she admits only guests whose presence comports with white supremacy, no court would hold, on that ground, that the bar can validly exclude a party of

however, establish a pattern of selectivity that would seriously fortify the Council's argument here. The maitre d' may occasionally double as a "bouncer," but that does not alter his or her fundamental role. See *New York State Club Ass'n*, 487 U.S. 13.

²⁵ By its own submissions, the Council has not had, and does not now have, an "anti-gay" message to convey. (J.A. at 105.) Therefore, this is not a case where the inclusion of self-identified gay people will dilute or distort an event with an "anti-gay" theme or message. Cf. *Invisible Empire of the Knights of the Ku Klux Klan v. Mayor of Thurmont*, 700 F. Supp. 281, 288 (D.Md. 1988) (upholding right of Klan to march without NAACP participation but reserving the question of whether an anti-discrimination law of general applicability would require a different result). See also *Tashjian v. Republican Party*, 479 U.S. 208, 214-16 (1986) (holding that law permitting non-members to vote in party primary impermissibly burdens first amendment rights of members). The Council has merely expressed a desire to exclude self-identified lesbians, bisexuals and gay men from the Parade. As noted above, the Council cannot transform this discriminatory motive into a First Amendment shield against the Massachusetts anti-discrimination statute.

NAACP conventioners in defiance of a local anti-discrimination ordinance. Similarly, no court would take seriously any claim that the ticket-takers at Fenway Park select only fans whose desire to see the Red Sox play is consistent with the promotion of masculine solidarity, such that the local chapter of NOW can be denied a block of tickets for a Sunday outing, or a claim that the First Night celebration in Boston fosters xenophobic nationalism, such that a Japanese tour group can be told to stay away.

At the other extreme, some activities are plainly expressive and therefore entitled to serious First Amendment attention. When members of a Nazi organization wanted to parade through Skokie, Illinois, they themselves were clearly engaged in expression and thus were able to rely on the First Amendment. The content of their message, no matter how disturbing to others, was due the respect that the first amendment affords in an open society. *Cf. National Socialist Party v. Village of Skokie*, 432 U.S. 43 (1977) (granting expedited review to consider the obvious First Amendment claims).

The question in this case is whether the courts of the Commonwealth committed reversible error in placing the Council's administration of a particular event closer to administering Mardi Gras or First Night than marching of a column of brown shirts through a neighborhood of Holocaust survivors. On the record the Council made, the state courts placed the Council's conduct of this event with constitutional accuracy.

C. The Anti-Discrimination Law is Not Overbroad.

The Council argues that it cannot be required to comply with the public accommodations statute, because the statute is unconstitutionally overbroad in violation of the First and Fourteenth Amendments. Assuming that this claim is encompassed within the questions on which the Court granted the petition for certiorari, the overbreadth contention can be quickly disposed of.

In the Supreme Judicial Court, the Council argued that the statute is overbroad because "it reaches constitutionally protected speech in that it allows the court to examine the content of speech with standardless discretion." (Cert. Pet. App. at C15.) But the Supreme Judicial Court, whose interpretation of the statute the Council acknowledges to be conclusive (Pet'r Br. at 36), has stated that it would not "interpret [the statute] so that [it] could reach and unconstitutionally infringe on speech." (Cert. Pet. App. at C15 (citations omitted).²⁶ The Supreme Judicial Court's construction of the statute as applying to the unique Parade at issue here (which is all that court decided (Cert. Pet. App. at C13 n. 18)) can support the "as applied" challenge to the statute that the Council has made, albeit unsuccessfully. It cannot support a facial

²⁶ As the Supreme Judicial Court noted, the contention that the trial judge impermissibly inquired into the content of the Council's speech is not correct. Rather the judge made the inquiry required in this case, *see* Argument III, *supra*, as to whether the Council had shown protected First Amendment activity sufficient to entitle it to an exemption from a statute of general application. (See Cert. Pet. App. at C15 n.20, C16.)

attack on the statute on the ground that it applies to protected speech, when the vast majority of the applications of the statute do not apply to speech at all. *Broadrick v. Oklahoma*, 413 U.S. 601, 613 (1973).

In this Court, the Council seems to make a different argument: the statute is overbroad because "nearly all" rallies, demonstrations, parades, marches, or protests occurring on public streets "are regulated as to their participants and messages by the Massachusetts public accommodations law." (Pet'r Br. at 37.) A very similar argument was made in *New York State Club Ass'n*, 487 U.S. 1. In that case, the New York City Human Rights Ordinance was challenged on the ground that it intruded too broadly on the associational rights of clubs. The Court easily rejected that challenge because there, as here, the challenger failed to demonstrate "from the text of [the law] and from actual fact that a substantial number of instances exist in which the [l]aw cannot be applied constitutionally." *Id.* at 14. In *New York State Club Ass'n*, as in this case, no record was made in the trial court, and this Court could not thus "conclude that the [l]aw threatens to undermine the associational or expressive purposes" of a substantial number of clubs. *Id.* Accordingly, the Court could not "conclude that the law is substantially overbroad and must assume that whatever overbreadth may exist should be cured through case-by-case analysis of the fact situations to which its sanctions, assertedly, may not be applied." *Id.* (internal quotation marks and citation omitted); see *R.A.V. v. St. Paul*, ___ U.S. at ___, 112 S.Ct. at 2542-2548. That course requires rejection of the Council's overbreadth challenge in the present case.

IV. THE FINDINGS AND CONCLUSIONS OF THE STATE COURTS BELOW ARE AMPLY SUPPORTED BY THE RECORD.

As we have demonstrated, the Council's challenge to the statute, on its face and as applied, fails on the law and on the facts found in the trial court, as affirmed by the Supreme Judicial Court. The Council's suggestion that this Court should reach a different result by parsing the record differently must also fail.

The courts below appreciated the fact-sensitive nature of this case, and were fully aware that the Council would have a much stronger claim to an exemption from the public accommodations law if it appeared that its administration of the Parade advanced an expressive purpose that would be seriously impaired by an order requiring the Council to admit GLIB. (E.g., Cert. Pet. App. at B25 n.27; C13-14 at n.18.) Accordingly, those courts carefully considered the testimony and evidence at trial and reached their findings and conclusions in light of that thorough investigation. Those findings and conclusions are correct and should be sustained here.

The state superior court squarely found that the Council's assertions in support of its First Amendment claims were specious – a pretext for evading the application of the civil rights act. That factual finding is firmly rooted in the evidence adduced at trial and the credibility assessments made there.

The superior court primarily relied on the Council's own evidence regarding the nature of the Parade. On the basis of that evidence, the court discerned little expression at all in the Council's decisions to include other

groups, but to exclude GLIB. Indeed, the superior court concluded that the Council is not genuinely selective at all about would-be participants. As a practical matter, it admits virtually everyone but GLIB.

The superior court was fortified in that factual finding by other evidence at trial, which plainly demonstrated that the Council's attempt to cloak its administration of the Parade as an expression of its views is pretextual.

For example, the Council initially cited "safety reasons" and "insufficient information" as the explanations for refusing to consider GLIB's application. Later, it gave a different explanation – its suspicions that some members of GLIB were also members of ACT-UP and Queer Nation, whose purposes the Council apparently believed to be disruptive. The shift to a demand for a First Amendment exemption came still later, when it may have appeared to the Council that the Constitution offered a safer haven.

The superior court also found that the Council's chief administrative officer, Mr. Hurley, "equivocated" on the witness stand regarding his reasons for excluding GLIB. Hurley offered inconsistent and fluctuating explanations that, again, tended to show that the Council's reliance on the First Amendment is pretextual. These factual findings, sustained on appeal by the Supreme Judicial Court, are entitled to substantial weight here.

It is settled, of course, that in First Amendment cases this Court makes an "independent examination of the whole record" in order to ensure that "the judgment [below] does not constitute a forbidden intrusion on the

field of free expression." *Bose Corp. v. Consumers Union*, 466 U.S. 485, 499 (1984), (quoting *New York Times Co. v. Sullivan*, 376 U.S. 254, 284-286 (1964)).²⁷

Yet the precise nature of this Court's appellate review of fact-finding is a complex matter. The findings of state courts, reached after thorough litigation at trial, are not to be ignored entirely, but rather are entitled to respect. The measure of that respect is a function of three variables: (1) the character of the relevant factual issue (that is, whether the question is one of historical fact in the sense of a description of the primary elements of an historical event, or, instead, calls for some inference from the historical facts); (2) the character of the finder of fact below (that is, whether the trier of fact was a judge or a jury); and (3) the extent to which the relevant finding depends on credibility choices by the trier of fact.

Most of the primary, historical facts in this case were undisputed at trial. There was no disagreement, for example, that: (1) the Council had no written procedures or standards for selecting participants for the Parade

²⁷ The Supreme Judicial Court below also shouldered this same responsibility for "independent review." Independent review is not incompatible with the application of Mass. R. Civ. P. 52(a), which provides that findings of fact shall not be set aside unless "clearly erroneous." In *Bose Corp.*, this Court itself reconciled "independent review" in speech cases with Fed. R. Civ. P. 52(a), on which Mass. R. Civ. P. 52(a) is patterned. *Bose Corp.*, 466 U.S. at 498-501. Both the federal and state rules contemplate that the appellate court will review the entire record in order to decide whether the facts found below are sufficiently supported by the evidence. *Bose Corp.*, 466 U.S. at 499-500; see *Cox v. New England Tel. and Tel. Co.*, 607 N.E.2d 1035, 1040 (Mass. 1993).

(Cert. Pet. App. at B7; C8); (2) groups seeking to participate in the Parade were routinely given application forms and information about the Parade route (*id.*); (3) many widely divergent organizations and groups were scheduled to participate in the event – just as they had in previous years (Cert. Pet. App. B6-7; C8); (4) some groups and individuals had been allowed to participate in similar, previous Parades without submitting application forms in advance – e.g., members of the Boston Bruins hockey club. (App. B8, C8.)

A. The Crucial Finding Below Was One of Historical Fact.

The most important disputed issue at trial was whether the Council selected participants according to any standard at all or, instead, opened the event to the public generally. That issue turned on what the individual administering the event, Mr. Hurley, understood his task to be – that is, what was in his mind at the time he approved other participants, but barred GLIB. The content of Hurley's mind at that juncture was plainly a matter of historical fact. *Hernandez v. New York*, 500 U.S. 352, 367 (1990) (holding that a state court finding of discriminatory intent is a factual determination entitled to deference even if it relates to a constitutional issue); *Bose Corp.*, 466 U.S. at 498; *Pullman-Standard v. Swint*, 456 U.S. 273, 287-88 (1982) (holding that discriminatory intent under Title VII is question of pure fact reviewable only for clear error).

In close cases, this Court has typically characterized questions as factual or legal in a way that achieves the

most appropriate forum allocation: if it appears that an issue is best left to the jury or the trial judge, then it usually is considered to be one of fact; if, however, an issue is better determined by an appellate court, it is typically considered to be one of law or a mixed question. Cf. *Miller v. Fenton*, 474 U.S. 104, 113-15 (1985). In this instance, the nature of what Hurley was thinking and doing, and, therefore, the nature of the event he was administering, is the kind of factual issue that is best left to the trier of fact, who actually observed Hurley on the witness stand.

In sharp contrast to conventional analysis, the Council asserts that this Court must disregard the trial court's finding on this vital point and substitute its own *de novo* assessment of Hurley's intentions from the cold record. The obscenity and libel cases the Council cites for such a questionable approach involve questions of an entirely different order. Matters such as whether material is "patently offensive" or whether a speaker acts with "actual malice" are not issues of primary, descriptive, historical fact at all. Those questions cannot be resolved solely by investigating historical events and assessing the credibility of witnesses, but rather demand substantial judicial judgment. The more judgment a question is understood to require, and the less simple historical investigation, the more suitable the question is for consideration on appeal.

Moreover, lower courts administering the federal law of obscenity and libel require some consistent understanding of what counts as "patently offensive" material or personal attacks with "actual malice" and can get that

guidance only if this Court reviews lower court judgments and uses its appellate opinions to elaborate those issues. Only in that way can this Court achieve some rough uniformity in a series of cases in which more or less the same issue is presented in similar circumstances.

When, however, the question in a case is the "subjective state of mind" that a "*particular*" person had at a "*particular*" time, then the issue is clearly one of descriptive, historical fact that is best left to the trial judge who saw the relevant witness testify. *Bose Corp.*, 466 U.S. at 518 n.1 (Rehnquist, C.J., dissenting). An issue of this kind does not arise routinely in a category of cases, but, instead, is presented only in an isolated lawsuit and will not reappear somewhere else. The justifications for more extensive appellate review in the obscenity and libel contexts have no purchase here, any more than they would in a fact-bound negligence case.

B. The Crucial Finding Was Made by a Judge.

The key factual question in this case was specifically determined by an experienced trial judge, who set out the evidence and explained his evaluation. This Court is not, then, invited to rely on factual findings that may have been subsumed within a jury's general, unexplained verdict. The Chief Justice has explained that independent review of fact-finding is justified primarily in cases in which the facts were found by a jury, rather than by a trial judge. *Bose Corp.*, 466 U.S. at 518 n.2 (Rehnquist, C.J., dissenting) (joined by O'Connor, J.).

C. The Finding Was Based on the Trial Court's Credibility Choices.

Finally, the key finding below was largely reached on the basis of the superior court's assessment of credibility. Even in a First Amendment case, this Court may properly decline to "second-guess" a trial judge on the "credibility of the witnesses." *Bose Corp.*, 466 U.S. at 500.²⁸ In *Bose Corp.* itself, this Court accepted the trial court's determination that the author of a magazine article "did not provide credible testimony concerning the reason for his choice of words and his understanding of the meaning" of one of the words used. *Harte-Hanks Communications v. Connaughton*, 491 U.S. 657, 689 n.35 (1989) (quoting *Bose Corp.*, 466 U.S. at 511-12).

In this case, the superior court judge had the opportunity to observe Hurley on the stand and to judge his credibility. As noted, the judge found that Hurley "equivocated about his reasons for excluding GLIB" and provided inconsistent explanations of his behavior. (Cert. Pet. App. at B3.) Then, in light of uncontested evidence that Hurley had allowed other groups to participate without applying any objective standard, the trial judge concluded that Hurley, in fact, generally performed only the

²⁸ Both the "independent review" responsibility in First Amendment cases and the "clearly erroneous" standard for reviewing factual findings permit an appellate court to respect trial-level judgments regarding the credibility of witnesses. *Bose Corp.*, 466 U.S. at 499-500 (noting that Fed. R. Civ. P. 52(a) commands that "due regard" be given to "the trial judge's opportunity to observe the demeanor of the witnesses" and recognizing that the "constitutionally based rule of independent review" permits that opportunity to be "given its due").

ministerial function of processing all applications for approval. (*Id.* at B4 n.5.)²⁹

In sum, the superior court concluded that Hurley did not exercise judgment on applications and approve for participation only organizations and groups whose involvement was consistent with expressive themes identified by the Council. (Cert. Pet. App. at B24-25.) Instead, the court determined that, in fact, Hurley administered the Parade as an "open recreational event" to which everyone was freely invited – everyone, that is, except GLIB, which was excluded on the basis of its sexual orientation. (*Id.* at B9, 25, 27.)

The Chief Justice has explained that an appellate court is not well positioned to make a "*de novo* determination about the state of mind of a particular author at a particular time," which typically turns not on "objectively reviewable facts in the record," but rather on "an evaluation of credibility." Assessments of that kind are "best left to the trial judge." *Bose Corp.*, 466 U.S. at 519 (Rehnquist, C.J., dissenting) (joined by O'Connor, J.).³⁰

²⁹ The superior court also may have relied in part on argument by counsel – which may also be the basis on which findings of historical fact rest. *E.g.*, *Cox v. Louisiana*, 379 U.S. 536, 566 (1965).

³⁰ Concurring in *Harte-Hanks Communications*, Justice White said:

In my view, in cases like this the historical facts – e.g., who did what to whom and when – are reviewable only under the clearly-erroneous standard mandated by Federal Rule of Civil Procedure 52. Credibility determinations fall in this category, as does the issue of knowledge of falsity." 491 U.S. at 694 (joined by Rehnquist, C.J.).

D. The Supreme Judicial Court Properly Sustained the Superior Court's Findings.

The Council charges that the Supreme Judicial Court below failed to undertake its constitutional obligation to review the entire record to ensure that the trial court's determinations, including its determinations of fact, properly respected the Council's First Amendment rights.

To upset the Supreme Judicial Court's judgment on this score, this Court must fasten on that court's properly appreciative references to the work of the trial judge; attach significance to the state court's failure to articulate the "independent review" doctrine explicitly; and ignore the state court's statements that it did, indeed, examine the entire record. (Cert. Pet. App. at C6, C7 n.9, C8 n.10, C11, C13-14 n.18; C14, C15.) This Court reviews state court judgments, not state court opinions. So long as it appears from a fair reading of the whole of such an opinion that the state court has not mistaken its duty and has, instead, actually applied the appropriate constitutional standard, its judgment should be sustained. *Accord Harte-Hanks Communications*, 491 U.S. at 667-68.

The Council also contends that the Supreme Judicial Court reached the wrong result on the merits of the central factual issue. Simply put, the Council insists that the Supreme Judicial Court should have substituted its judgment about what Hurley was thinking and doing at the critical time for the different assessments made by the trial judge, who saw Hurley on the witness stand. To do that, the Supreme Judicial Court would have had to set aside considerations that routinely call for appellate deference to trial court findings: this issue is one of primary,

historical fact; the trier of fact at trial was an experienced trial judge, not a jury; and, perhaps most important, the determination to be made depended on the trial court's assessment of Hurley's credibility. It is untenable to insist that the Supreme Judicial Court should have done any such thing, much less that this Court should do so now, at a stage even further removed from the "feel" of the trial.

CONCLUSION

The task in this case, as in all such highly fact-driven cases, is to examine the record below and to determine whether the courts of the Commonwealth committed reversible error in their appraisal of the evidence regarding *this* singular event and the legal implications that follow. This task is not aided by the invocation of formalistic labels, and the courts below resisted any attempt to resolve the case in that fashion. Instead, they looked closely at the facts. What they found was that the Council, dishonoring its long history as the faithful steward of a splendid public event, is attempting to use the First Amendment as a ruse for evading the Commonwealth's anti-discrimination laws and, into the bargain, drowning out other legitimate voices. The state courts reached this conclusion after laboring over this case, as it unfolded

over a two-year period. They got it right. For the reasons given above, this Court should affirm their judgment.

Respectfully submitted,

MARY BONAUTO
GAY & LESBIAN ADVOCATES &
DEFENDERS
Post Office Box 218
Boston, Massachusetts
02112

LARRY W. YACKLE
Boston University School
of Law
Boston, Massachusetts
02215

CHARLES S. SIMS
PROSKAUER ROSE GOETZ &
MENDELSON
1585 Broadway
New York, New York 10036

JOHN WARD, Of Counsel
Counsel of Record
DAVID DUNCAN
ZALKIND, RODRIGUEZ, LUNT
& DUNCAN
65a Atlantic Avenue
Boston, MA 02110
(617) 742-6020

GRETCHEN VAN NESS
60 State Street
Boston, Massachusetts
02109

GARY BUSECK
McDONOUGH & HACKING
One Center Plaza
Boston, Massachusetts
02108

APPENDIX A

M.G.L. C. 272

§ 92A. Advertisement, book, notice or sign relative to discrimination; definition of place of public accommodation, resort or amusement

No owner, lessee, proprietor, manager, superintendent, agent or employee of any place of public accommodation, resort or amusement shall, directly or indirectly, by himself or another, publish, issue, circulate, distribute or display, or cause to be published, issued, circulated, distributed or displayed, in any way, any advertisement, circular, folder, book, pamphlet, written or painted or printed notice or sign, of any kind or description, intended to discriminate against or actually discriminating against persons of any religious sect, creed, class, race, color, denomination, sex, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, nationality, or because of deafness or blindness, or any physical or mental disability, in the full enjoyment of the accommodations, advantages, facilities or privileges offered to the general public by such places of public accommodation, resort or amusement.

A place of public accommodation, resort or amusement within the meaning hereof shall be defined as and shall be deemed to include any place, whether licensed or unlicensed, which is open to and accepts or solicits the patronage of the general public and, without limiting the generality of this definition, whether or not it be (1) an inn, tavern, hotel, shelter, roadhouse, motel, trailer camp or resort for transient or permanent guests or patrons

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seeking housing or lodging, food, drink, entertainment, health, recreation or rest; (2) a carrier, conveyance or elevator for the transportation of persons, whether operated on land, water or in the air, and the stations, terminals and facilities appurtenant thereto; (3) a gas station, garage, retail store or establishment, including those dispensing personal services; (4) a restaurant, bar or eating place, where food, beverages, confections or their derivatives are sold for consumption on or off the premises; (5) a rest room, barber shop, beauty parlor, bathhouse, seashore facilities or swimming pool, except such rest room, bathhouse or seashore facility as may be segregated on the basis of sex; (6) a boardwalk or other public highway; (7) an auditorium, theatre, music hall, meeting place or hall, including the common halls of buildings; (8) a place of public amusement, recreation, sport, exercise or entertainment; (9) a public library, museum or planetarium; or (10) a hospital, dispensary or clinic operating for profit; provided, however, that with regard to the prohibition on sex discrimination, this section shall not apply to any corporation or entity authorized, created or chartered by federal law for the express purpose of promoting the health, social, educational, vocational, and character development of a single sex; provided, further, that with regard to the prohibition of sex discrimination, those establishments which rent rooms on a temporary or permanent basis for the exclusive use of persons of the same sex shall not be considered places of public accommodation and shall not apply to any other part of such an establishment.

Any person who shall violate any provision of this section, or who shall aid in or incite, cause or bring about,

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in whole or in part, such a violation shall be punished by a fine of not more than one hundred dollars, or by imprisonment for not more than thirty days, or both.

M.G.L. C. 272

§ 98. Discrimination in admission to, or treatment in, place of public accommodation; punishment; forfeiture; civil right

Whoever makes any distinction, discrimination or restriction on account of race, color, religious creed, national origin, sex, sexual orientation, which shall not include persons whose sexual orientation involves minor children as the sex object, deafness, blindness or any physical or mental disability or ancestry relative to the admission of any person to, or his treatment in any place of public accommodation, resort or amusement, as defined in section ninety-two A, or whoever aids or incites such distinction, discrimination or restriction, shall be punished by a fine of not more than twenty-five hundred dollars or by imprisonment for not more than one year, or both, and shall be liable to any person aggrieved thereby for such damages as are enumerated in section five of chapter one hundred and fifty-one B; provided, however, that such civil forfeiture shall be of an amount not less than three hundred dollars; but such person so aggrieved shall not recover against more than one person by reason of any one act of distinction, discrimination or restriction. All persons shall have the right

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to the full and equal accommodations, advantages, facilities and privileges of any place of public accommodation, resort or amusement subject only to the conditions and limitations established by law and applicable to all persons. This right is recognized and declared to be a civil right.
